

Smt Shweta W/O Nikhil Belekundaragi vs Sri Nikhil Guruputrappa ... on 12 April, 2023

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CP No. 100207 of 2022

IN THE HIGH COURT OF KARNATAKA, DHARWAD BENCH

DATED THIS THE 12TH DAY OF APRIL, 2023

BEFORE

THE HON'BLE MRS JUSTICE K.S.HEMALEKHA

CIVIL PETITION NO. 100207 OF 2022

BETWEEN:

SMT SHWETA W/O NIKHIL BELEKUNDARAGI
AGE: 27 YEARS, OCC: PVT. SERVICE
R/O: C/O: GANGADHAR CHOWDAPPA NAVADAGI
AT & POST. CHIGATERI, TAL. HARAPPANAHALLI
DIST: VIJAYANAGAR-560040.

...PETITIONER

(BY SRI. INANAGOUDA K KABBUR., ADVOCATE)

AND:

SRI. NIKHIL GURUPUTRAPPA BELEEKUNDARAGI
AGE.32 YEARS,OCC: PVT. SERVICE,
R/O: JAWAHAR COMPLEX,2ND FLOOR,
BAZAAR ROAD, BAILHONGAL
DIST. BELAGAVI-591102.

ANNAPURNA
CHINNAPPA
DANDAGAL
Digitally signed by

...RESPONDENT

ANNAPURNA
CHINNAPPA DANDAGAL
Location: HIGH COURT
OF KARNATAKA
DHARWAD

(BY SRI. VIJAY K NAIK., ADVOCATE)

THIS CP FILED UNDER SECTION 24 OF CPC,
PRAYING TO WITHDRAWAL OF MATRIMONIAL CASE IN MC
NO. 381/2022 PENDING ON THE FILE OF HONBLE
PRINCIPAL JUDGE FAMILY COURT BELAGAVI AND
TRANSFER THE SAME TO THE HONBLE PRINCIPAL SENIOR
CIVIL JUDGE, FAMILY COURT HARAPPANAHALLI, IN THE

INTEREST OF JUSTICE AND EQUITY.

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CP No. 100207 of 2022

THIS PETITION, COMING ON FOR ADMISSION, THIS DAY, THE COURT MADE THE FOLLOWING:

ORDER

The Petitioner-wife is before this Court seeking to withdraw M.C.No.381/2022 pending on the file of the Principal Judge, Family Court, Belagavi and transfer to the Principal Senior Civil Judge, Family Court, Harappanahalli.

2. Brief facts as stated by the petitioner is that the petitioner is the legally wedded wife of respondent and marriage was solemnized on 02.05.2019 as per the custom prevailed in their community. It is stated that after the marriage, petitioner and respondent led their martial life for few months at Bangalore and after few months of the marriage, the respondent-husband and her in laws started harassing petitioner and demanding dowry. Several panchayats which were held between two families have failed and there is no fruitful result. It is stated by the petitioner that due to un-cordial relation between the petitioner and the respondent, they are living separately and the petitioner is residing at her parents home at Chitageri village, Harappanahalli taluk, Vijayanagar district. This being so, respondent herein has filed petition under Section 13(1)(ia)(ib) of Hindu Marriage Act 1955, seeking dissolution of marriage in MC No.281/2022 before the Family Court, Belagavi.

2. Pursuant to notice issued by this Court, respondent has appeared and filed his statement objection interlia contending that the petitioner is not permanent resident as stated in her petition and she is residing at Bangalore and working as a software engineer in a company viz. Aris Global Software (P) Ltd Bengaluru and to evidence that fact respondent has placed salary being credited in favor of the petitioner on 17.03.2023 document from the website of Employees Provident Fund Organisation. It is further stated that petitioner is in the habit of filing frivolous litigation against husband and harassing and misusing the law by filing false petition against respondent and sought for dismissal of the civil petitioner.

3. Heard the learned counsel for the petitioner and learned counsel for the respondent. Perused the material on record.

4. It is not in dispute that the petitioner and respondent are husband and wife. It is also not in dispute that the petitioner is a young lady aged about 27 years and the distance between Chitageri village, Harappanahalli taluk, Vijayanagar district is more than 270 kms. and would consume nearly 6 hours of travel time and petitioner being a lady would be at tremendous pressure and in inconvenience to travel all the way from Chitageri village to Belgaum to attend proceeding filed by the husband under Section 13(1)(ia)(ib) of Hindu Marriage Act 1955.

5. Section 24 of the CPC enables this Court to exercise power to transfer the petition, suit, appeal or other proceedings where justice demands. In transfer petition, where the transfer is sought by the wife, the convenience of wife needs to be considered as held by Hon'ble Apex Court in catena of judgment in line. The Apex Court in case of N.C.V. Aishwarya VS. A.S.Saravana Karthik Sha reported in AIR 2022 SC 4318 has held that at para No.9 which reads as under:

"9. The cardinal principle for exercise of power under Section 24 of the Code of Civil Procedure is that the ends of justice should demand the transfer of the suit, appeal or other proceeding. In matrimonial matters, wherever Courts are called upon to consider the plea of transfer, the Courts have to take into consideration the economic soundness of both the parties, the social strata of the spouses and their behavioural pattern, their standard of life prior to the marriage and subsequent thereto and the circumstances of both the parties in eking out their livelihood and under whose protective umbrella they are seeking their sustenance to life. Given the prevailing socio- economic paradigm in the Indian society, generally, it is the wife's convenience which must be looked at while considering transfer."

6. In the present case, the petitioner being a young lady aged about 27 years and travel distance is more than 270 kms. and travel time being 6 hours causing inconvenience to the petitioner as she has no one to accompany her to attend the proceedings at Belagavi since her parents are aged.

7. In light of the reasons stated supra, the petition filed by the wife needs to be allowed. Accordingly, this Court pass the following:

ORDER

a) The Civil petition is allowed.

b) The M.C.No.381/2022 pending on the file of the Principal Judge, Family Court, Belagavi is withdrawn and transferred to the Principal Senior Civil Judge, Family Court, Harappanahalli.

Sd/-

JUDGE VMB